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Francisco Herrera v. Healthright 360, et al.

Friday,

June 26, 2026

[TENTATIVE] ORDER GRANTING DEFENDANTS'S
MOTION FOR SUMMARY JUDGMENT (0294)

I.

BACKGROUND

Plaintiff

alleges he was subjected to discrimination based on his disabilities and/or medical conditions while he was employed by Defendants. Defendants allegedly failed to accommodate Plaintiff and retaliated against him by terminating his employment. Plaintiff alleges eight claims for (1) Disability Discrimination; (2) Retaliation under FEHA (Gov't Code §§ 12940); (3) Failure to Provide Reasonable Accommodation; (4) Failure to Engage in the Interactive Process; (5) Violation of the California Family Rights Act; (6) Failure to Prevent Discrimination, Retaliation; (7) Wrongful Termination; and (8) Breach of Implied-in-fact Contract Not to Terminate without good cause.

Defendants move

for summary judgment or adjudication of all eight claims. The causes of action are discussed in the sequence presented in Defendants' motion.

II.

LEGAL STANDARDS

Summary judgment is proper “if all the papers submitted show that the material facts are undisputed and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., § 437c subd. (c).) The moving party's burden is to show that based on the undisputed facts “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c subd. (p)(2).) If that threshold burden is met, the burden shifts to the opposing party to show a triable issue of one or more material facts. (Id.)

A party may move for summary adjudication “as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages. (Code Civ. Proc., § 437c (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id.)

The court applies the three-step analysis to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents' claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (Torres v. Reardon (1992) 3 Cal.App.4th 831, 836.)

III. DISCUSSION

A.

Third cause of
action for failure to accommodate

The FEHA

imposes an affirmative obligation on the employer to reasonably accommodate a known disability of an employee only where the accommodations would enable the employee to perform the essential functions of his job. (Gov. Code, § 12940 subd. (m); (Nadaf-Rahrov

v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 975 ["We conclude an employer is liable under section 12940(m) for failing to accommodate an employee only if the work environment could have been modified or adjusted in a manner that would have enabled the employee to perform the essential functions of the job."].)

Plaintiff was

employed in 2023 as a Billing Coordinator, a position that required daily in-office attendance, paperwork handling, and invoice reconciliation. (UF 1.) Although Plaintiff purports to dispute this fact, he offers no evidence contradicting the nature of these job duties. Plaintiff performed his duties on the second floor of a building without elevator access. (UF 2.) His assertion that he could use the stairs twice a day does not dispute the location of his workspace, or the physical demands associated with accessing it.

Plaintiff had

a history of Type II diabetes and related vision problems that predated 2023. (UF 3.) Before April 2023, his vision was "getting worse" and affecting his work, and Healthright modified his computer settings to accommodate his inability to see clearly. (UF 4.) Plaintiff's assertion that he could still perform his job does not dispute the existence or progression of these vision issues.

There is no

dispute that, before Plaintiff could address his vision problems, physicians determined during a Workers' Compensation-related medical examination in April 2023 that he required immediate heart bypass surgery. (UF 5.) On April 6, 2023, Plaintiff requested FMLA/CFRA leave for the surgery, and Defendants immediately granted the request. (UF 6.) Plaintiff testified at deposition that he did not know when his leave would end. Plaintiff was placed off work from April 7, 2023, through June 7, 2023, pursuant to a Kaiser Work Status Report. (UF 8.)

Plaintiff

underwent heart bypass surgery on April 13, 2023, and was readmitted to the hospital on April 30, 2023, where he remained for approximately two months undergoing treatment for complications to his leg and side. (UF 9-10.) He underwent a debridement in June 2023, a skin graft in July 2023, and was discharged around August 2023. (UF 11-12.) Plaintiff testified that he could not have returned to work until at least the summer or fall of 2024. (UF 13.) This testimony is directly relevant to whether Plaintiff was qualified to

perform the essential functions of his position and whether Defendants could reasonably accommodate his restrictions.

Plaintiff

submitted multiple requests for extended leave through Work Status Reports seeking extensions through September 30, 2023, November 1, 2023, and December 31, 2023. (UF 14.) Defendants approved each extension through December 31, 2023. (UF 15.)

Plaintiff submitted a fifth Work Status Report on December 27, 2023, requesting additional leave through February 28, 2024. (UF 16.) Plaintiff contends the note was submitted on December 28, 2023, and argues that Defendants acted preemptively in denying future leave requests. The timing of the submission, however, does not alter the undisputed fact that Plaintiff requested a fifth extension of leave.

During the

fall and winter of 2023, Plaintiff experienced blood clots in his eyes, a continuation of his preexisting diabetes-related vision issues, which affected his peripheral vision and caused vision loss with head movement. (UF 17.) Although Plaintiff argues that he could have returned to work in March 2024, that contention does not dispute the evidence that his medical conditions and related limitations remained ongoing.

Plaintiff

underwent cataract surgery on both eyes on September 25, 2023, which did not alleviate his vision problems. He subsequently underwent surgery on November 13, 2023, for vitreous hemorrhage and retinal membrane peeling, followed by recurring intraocular bleeding noted during a follow-up visit on November 27, 2023. (UF 19.)

In December

2023, Plaintiff testified that he informed Defendants' management in person that he continued to suffer from his heart condition and vision issues. (UF 20.) Although Plaintiff purports to dispute this fact, his deposition testimony confirms it. In late December 2023, after Plaintiff discussed his ongoing health issues with management and submitted his fifth Work Status Report, Ms. Gonzalez advised Plaintiff that an extension beyond January 2024 might not be approved. (UF 21.) Although Plaintiff purports to dispute this fact, his own evidence confirms it. Plaintiff admits that on December 27, 2023, Kranzer

emailed Gonzalez stating: "I received a text from Francisco Herrera today indicating that he is going to ask his doctor for an extension on his leave. I know that we had discussed this a few weeks ago, but that would mean that we would move towards separation in January, correct?" (Opp. 7:24-28; PAF 124.) This evidence confirms that, by December 27, 2023, Plaintiff intended to seek an additional leave extension because his medical conditions remained ongoing.

Ms. Gonzalez

consulted with Healthright Human Resources personnel and presented information regarding Plaintiff's continuous leaves and multiple extension requests. Healthright ultimately determined that Plaintiff required an indefinite leave of absence based on the length of his leave, his repeated requests for additional time, and the historical medical documentation reflecting consecutive extensions. (UF 22.) Plaintiff's opposition does not create a triable issue regarding these facts. The material fact is that, by late December 2023, Defendants concluded Plaintiff would require an indefinite leave of absence because his medical issues remained ongoing and there was no definite return-to-work date.

On January 3, 2024, Defendants denied Plaintiff's request for additional leave through February 28, 2024. (UF 23.) On January 5, 2024, Plaintiff responded by email, stating that he was unable to work because his eyes were not focusing and he was having trouble with balance. (UF 24.) Plaintiff's evidence does not dispute that, as of that date, he remained unable to work.

Further supporting Defendants' contention that Plaintiff could not work as of January 3, 2024, Plaintiff's eye doctor recommended a second surgery on February 22, 2024. (UF 25.) Although Plaintiff contends this evidence is irrelevant to his failure-to-accommodate claim, it is directly relevant to whether he was qualified to perform the essential functions of his job at the time of termination. Plaintiff still had blood in his eye on January 31, 2024. (UF 26.)

Dr. Zhang

admitted that she extended Plaintiff's leave through February 28, 2024, based on her "hope" that he would be able to return to work if his vision improved. (UF 27.) As Defendants correctly note, this testimony reflected an aspiration rather than a medical opinion that Plaintiff would, in fact, be able to return to work by that date. Plaintiff argues that Dr. Zhang could not state that he

needed an indefinite leave of absence. The relevant inquiry, however, is whether Plaintiff could return to work by February 28, 2024. Dr. Zhang could not say that he would be able to do so and instead hoped that his condition would improve.

Further supporting Defendants' contention that Plaintiff was not qualified to work, Plaintiff was diagnosed with colon cancer in early February 2024, and surgery was scheduled for April 2024. (UF 30.)

On February

23, 2024, Plaintiff emailed Defendants asking whether he should return to work on March 1, 2024, explaining that his doctor had postponed his appointment and that he was still struggling with balance and stairs. (UF 32.) This constitutes further undisputed evidence that Plaintiff remained unable to perform the essential functions of his position.

Although Defendants terminated Plaintiff on February 29, 2024, they informed him that, if he became medically cleared, he had six months under the Collective Bargaining Agreement to reapply and would be reinstated without loss of seniority. (UF 33.) This evidence undermines Plaintiff's claim of discriminatory intent because Defendants expressly advised him that he could return to employment with his seniority intact if he later became medically cleared to work. Plaintiff responded that his doctor had not yet finalized a treatment plan. (UF 34.) Regardless of whether Defendants specifically relied on this information when making the termination decision, the relevant inquiry is whether Defendants were required to continue accommodating an employee whose medical limitations extended beyond February 28, 2024, with no definite return-to-work date.

After his

termination, Plaintiff underwent additional eye treatment in March 2024 and major colorectal surgery in April 2024. (UF 38.) He continued to receive treatment for ongoing vision issues in May, June, and August 2024. (UF 39.) Plaintiff does not dispute that ongoing health issues, including diabetes management and recovery from colorectal surgery, prevented him from working through the summer or fall of 2024. (UF 41.) He suffered complications from colorectal surgery in April 2024 that required several months of recovery. (UF 42.) Plaintiff remained on temporary partial disability from July 10, 2024, through August 7, 2024. (UF 43.)

As of November 2025, Plaintiff was still awaiting colon reattachment surgery and continued to attend follow-up appointments for his ongoing medical conditions. (UF 45.) Plaintiff did not request any accommodation other than an extension of leave. (UF 46.)

Reasonable

accommodation does not require an employer to wait indefinitely for an employee's medical condition to improve. (Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226-227.) A requested extension of leave must be reasonable in light of the facts known at the time. (Rosado v. Leprino Foods Company (E.D. Cal., Apr. 4, 2025, No. 2:22-CV-02302-KJM-CKD) 2025 WL 1017529, at *4.) As of February 22, 2024, Plaintiff's eye doctor was recommending a second surgery. (UF 25.)

Plaintiff was

required to show that he could perform the essential functions of his position with or without reasonable accommodation. (Nadaf-Rahrov v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 975.) At the time of termination, Plaintiff continued to experience vision and balance problems and required additional surgery.

The undisputed

evidence shows that Defendants granted every request for medical leave from April 2023 through December 2023 and that Plaintiff continued to experience significant medical issues requiring additional treatment and surgery. Dr. Zhang testified that Plaintiff's vision problems had not been resolved by February 28, 2024. This is further supported by the undisputed evidence that Plaintiff continued to receive temporary disability benefits through August 2024 and never reapplied for his position during the six-month reinstatement period. (UF 33, 35-36.)

The

failure-to-accommodate claim also fails because the undisputed evidence demonstrates that Plaintiff was not qualified to perform the essential functions of his position, with or without reasonable accommodation, at the time of his termination. Plaintiff admitted that he remained unable to work due to vision and balance issues, required additional treatment and surgery, and did not return to work until months later. Because Plaintiff requested no accommodation other than an additional leave of absence and there is no evidence that he could have resumed his duties in the near future, Defendants

are entitled to summary adjudication of the failure-to-accommodate claim.

B. Fourth

cause of action for failure to engage in the interactive process.

The interactive process claim fails for the same reason. Even assuming Defendants should have engaged in further discussions with Plaintiff, there is no evidence that any additional interactive process would have identified a reasonable accommodation other than additional leave.

The FEHA

requires employers to fully participate in the interactive process. (Gov Code § 12940.) There is no dispute that Defendants accommodated Plaintiff with extended leaves beginning April 2023, accommodating him when Plaintiff needed bypass surgery, additional leave to because he was hospitalized for two months for complications, and because he had ongoing eye and balance issues. There is no evidence that Plaintiff could have returned to his job by the end of February 2024, since he still needed eye surgery.

As noted

above, the employer is not obligated to offer indefinite medical leave with no evidence that Plaintiff could return to work by February 2024. Defendants could have offered finite leave "provided it is likely that at the end of the leave, the employee would be able to perform his or her duties." (Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226.)

The undisputed facts show that it was unlikely that Plaintiff could return by February 2024.

C. First

cause of action for disability discrimination

This claim

fails for the same reasons. Plaintiff must be qualified for the position.

1)

McDonnell Douglas

shifting burden. (McDonnell

Douglas Corp. v. Green (1973)

411 U.S. 792, 802-803.)

To establish a prima facie case for discrimination, a plaintiff must show that plaintiff was a member of a protected class; was qualified for the position sought or was performing competently in the position held; suffered an adverse employment action, such as termination, demotion, or denial of an available job; and some other circumstance suggesting the Defendants's discriminatory motive. (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355.) If proved, the plaintiff will have established a presumption of discrimination. (Id.)

The burden then shifts to Defendants employer to rebut the presumption by producing admissible evidence, sufficient to "raise [] a genuine issue of fact and to justify a judgment for the [employer], that its action was taken for a legitimate, nondiscriminatory reason." (Guz at 355–356.) If proof is sustained, the burden shifts back to the plaintiff to establish that the employer's proffered reasons were pretexts for discrimination. (Guz at 356).

At this point, the plaintiff's burden merges with the ultimate burden of persuading the court that the plaintiff has been the victim of intentional discrimination. The employee may succeed in this either directly by persuading the court that a discriminatory reason more likely motivated the employer or indirectly by showing that the employer's proffered explanation is unworthy of credence. (McDonnell Douglas, at 804-805).

2) Analysis

Plaintiff argues he can show Defendants' reasons for termination was a pretext by showing

"weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them unworthy of credence, ... and hence infer that the employer did not act for the [asserted] non-discriminatory reasons." (Moore v. Regents of University of California (2016) 248 Cal.App.4th 216, 235–236 [internal quotations omitted].)

Plaintiff relies on the testimony of supervisor witnesses that

Dr. Zhang's note did not indicate indefinite or open-ended leave, or there were zero records suggesting Herrera would not return by February 28, 2024. Plaintiff contends Defendants terminated him because he sought indefinite leave. (PAF 69.) However, the undisputed facts show that before his termination, he sought to extend an existing leave, and Defendants determined that even if given, he would not be able to return to work by February 28, 2024, despite 10 months of leave. Defendants relied on Plaintiff's own testimony, the continuing Status Reports, two eye surgeries, a bypass surgery, complications from that surgery, and his doctor's testimony about Plaintiff's (in)ability to return considering the ongoing eye issues.

Plaintiff's evidence of the supervisor's opinions on whether Plaintiff asked for indefinite leave is not sufficient to show that Defendants' decision to separate was "weak, implausible or inconsistent" given the uncontroverted evidence proffered by Defendant.

Plaintiff argues that "me too" evidence supports retaliatory motive because Defendants denied medical leave to 44 employees, 11 of whom were separated as a result. (Opp. 19:11-12; PAF 205-225.) Evidence of other employees experiencing discrimination is admissible to show a discriminatory intent "because it tends to demonstrate hostility towards a certain group and to show employer's general attitude of disrespect toward [people within the protected category]" (*Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 113.)

The "me too" evidence provided by Plaintiff showing other isolated incidents where employees were denied leave, generally, does not infer Defendants' attitude of hostility toward employees with a disability or who request leave. The reasons for the leave described in Plaintiff's additional facts involve bereavement leave or a requests for medical leave which was denied, or where the employer did not adequately accommodate.

The difference here is that Plaintiff was granted five extensions of leave over 10 months. The circumstances of other employees are not comparable and do not infer general hostility toward a particular group. (PAF 205-224.)

cause of action for violation of the California Family Rights Act ("CFRA") and 2nd cause of action for retaliation

The Government Code prohibits an employee from discharging or discriminating against an individual because of the employee's exercise of the right to family care and medical leave. (Gov. Code § 12945.2(k)(1).) Plaintiff alleges "Defendants violated CFRA by interfering with, restraining, and denying plaintiff's exercise of rights provided by CFRA, by taking adverse employment actions against plaintiff in retaliation for his attempted and/or actual exercise of rights provided by CFRA, and by taking adverse employment actions, including but not limited to the termination of his employment due to his use of CFRA qualifying leave. (Complaint, ¶ 71.) Plaintiff alleges Defendants took adverse employment action against him in retaliation for his exercise of the rights afforded him under the FEHA. (Complaint, ¶ 14.)

There must be a causal link between the protected activity and the employer's action. (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.) Plaintiff is correct that temporal proximity between the conduct and adverse action can establish causation, however, "[t]he cases that accept mere temporal proximity between an employer's knowledge of protected activity and an adverse employment action as sufficient evidence of causality to establish a prima facie case uniformly hold that the temporal proximity must be 'very close.'" (Id.)

It is undisputed that Plaintiff requested FMLA/CFRA leave for heart bypass surgery on April 6, 2023, which the Defendants granted. (UF 6.) He was terminated on February 6, 2024, 10 months later (UF 31.) The undisputed evidence shows that within that 10-month period, Defendants continued to extend Plaintiff's leave which undermines the allegation that Plaintiff discriminated or retaliated against him for taking CFRA/FMLA leave.

Defendants relies on Rosado v. Leprino Foods Company (E.D. Cal., Apr. 4, 2025, No. 2:22-CV-02302-KJM-CKD) 2025 WL 1017529 which is instructive. The employee took unpaid medical leave which was extended numerous times until more than a year passed. (Id. at 1) The employer believed that further leave would not help the employee return to work, "but invited her to apply again when she could." (Id.) The undisputed facts here also establishe that despite a 10-month continued leave, Plaintiff would not be able to return because

of his ongoing eye issues even if his leave was again extended. Additionally, Defendants here also invited Plaintiff to reapply when his condition improved, and his seniority would be preserved. These undisputed facts do not support a retaliatory motive.

E.

8th

cause of action for breach of implied-in-fact contract not to terminate.

Plaintiff alleges that his tenure with Defendants shows that the parties entered into an implied-in-fact contract that Plaintiff was a permanent employee whose employment would not be terminated without good cause. Plaintiff alleges that Defendants' policies demonstrate that Defendants do not discharge employees without good cause. Plaintiff was given repeated assurances of job security. (Complaint, ¶¶ 91-94.)

An employment for no specified term may be terminated at the will of either party on notice to the other. (Lab. Code, § 2922.) Employment relationships are presumed to be at-will. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 335.) An agreement that the relationship is not at will can be implied, arising from the parties' conduct which may include "personnel policies or practices of the employer, the employee's longevity of service, actions or communications by the employer reflecting assurances of continued employment, and the practices of the industry in which the employee is engaged." (*Guz* at 336-337.) The evidence must show a "tendency in reason" to demonstrate the existence of an actual mutual understanding on particular terms and conditions of employment. (*Id.* at 337.)

Plaintiff's evidence to dispute that the relationship was not at will is based on Plaintiff's understanding, his "knowledge" of Defendants' practices, and his and other employees' lack of awareness of any situation where an employee was discharged without an alleged good faith reason, other employees' experience, and never hearing the term "at-will employment." (PAF 280.) Plaintiff argues the Employee Handbook reflects the practice of progressive discipline, performance improvement plans, demotion, suspension and a requirement of a two weeks' notice of an employee's resignation. (*Id.*)

This evidence, along with plaintiff's belief that consistent positive performance feedback from management demonstrates that he could only

be terminated for cause does not show a "tendency in reason" of the parties' mutual understanding that an employee could only be terminated for cause. The

same evidence does not dispute Defendants' contention that it does not maintain a policy or practice of terminating only for cause. (UF 282.)

F.

Derivative claims:

6th cause of action for failure to prevent discrimination and retaliation, 7th cause of action for wrongful termination in violation of public policy.

The undisputed facts confirm that Defendants did not fail to accommodate or discriminate on the basis of Plaintiff's disability. Plaintiff's evidence is insufficient to dispute that Defendants' reason for termination was not discriminatory or retaliatory. An employer is not liable for failure to take necessary steps to prevent conduct where the conduct never took place. (Trujillo v. North County Transit Dist. (1998)

63 Cal.App.4th 280, 289 ["The

commonsense approach used by the trial court has great intuitive appeal:

[T]here's no logic that says an employee who has not been discriminated against can sue an employer for not preventing discrimination that didn't happen, for not having a policy to prevent discrimination when no discrimination occurred.")

A claim for wrongful termination in violation of public policy requires that the public policy being violated is "tethered" to fundamental policies "delineated in constitutional or statutory provisions." (Stevenson v. Superior Court (1997) 16 Cal.4th 880, 889.)

These causes of action depend on the viability of the underlying claims alleging discrimination, retaliation or failure to accommodate all of which are prohibited under FEHA and reflect a public policy against such conduct. Accordingly, these derivative causes of action also fail.

G.

Plaintiff's

objections to evidence

In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those

objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review." (Code Civ. Proc., § 437c (q).)

Objection 2: SUSTAINED. Contrary to Andreas deposition testimony.

Objection 9: SUSTAINED only as to the legal conclusion that Plaintiff was an at-will employee.

All remaining objections are overruled.

H.

Judicial notice

The court denies Defendants' request for judicial notice of Paez v. City of Richmond (Cal. Ct. App., Jan. 27, 2025, No. A168287) 2025 WL 309644. It is an unpublished decision.

Defendants' request for judicial notice of six different decisions is granted. (Evid. Code §452(d).

IV.

CONCLUSION

Plaintiff has not met his burden of establishing that the material facts discussed above are controverted by the evidence. (Cal. Code Civ. Procedure § § 437c(p)(2). Accordingly, the motion for summary judgment is GRANTED.